

**Expungement Award
FINRA Dispute Resolution Services**

In the Matter of the Arbitration Between:

Claimant

Ronald L. Martin, Jr.

Case Number: 25-01102

vs.

Respondent

OSAIC Wealth, Inc

Hearing Site: St. Louis, Missouri

Awards are rendered by independent arbitrators who are appointed pursuant to Rule 13806 of the Code of Arbitration Procedure (“Code”) to issue final, binding decisions. FINRA makes available an arbitration forum—pursuant to rules approved by the SEC—but has no part in deciding the award.

Nature of the Dispute: Associated Person vs. Member

The expungement hearing was conducted by videoconference.

REPRESENTATION OF PARTIES

For Claimant Ronald L. Martin, Jr. (“Claimant”): Anthony J. Durone, Esq. and Timothy D. Wallner, Esq., Berkowitz Oliver LLP, Kansas City, Missouri.

For Respondent OSAIC Wealth, Inc. (“Respondent”): Eric A. Michaels, Esq., Saretsky Hart Michaels + Gould PC, Birmingham, Michigan.

CASE INFORMATION

Statement of Claim filed on or about: May 30, 2025.

Claimant signed the Submission Agreement: May 30, 2025.

Statement of Answer filed on or about: July 25, 2025.

Respondent signed the Submission Agreement: July 25, 2025.

CASE SUMMARY

In the Statement of Claim, Claimant asserted a claim seeking expungement of customer dispute information from registration records maintained by the Central Registration Depository (“CRD”).

In the Statement of Answer, Respondent supported Claimant’s expungement request.

RELIEF REQUESTED

In the Statement of Claim, Claimant (CRD Number 2200217) requested expungement of all references to Occurrence Number 2359763 from the CRD registration records and any and all other relief that the Panel deems just and equitable.

In the Statement of Answer, Respondent joined in Claimant's request for expungement.

OTHER ISSUES CONSIDERED AND DECIDED

The Arbitrators acknowledge that they have each read the pleadings and other materials filed by the parties.

On June 6, 2025, Claimant advised that the customers in Occurrence Number 2359763 ("Customers") was served with a copy of the Statement of Claim within 10 days of filing the Statement of Claim.

On July 22, 2025, the Customers submitted an unsworn written statement.

On September 15, 2025, Claimant advised that the Customers were served with a copy of the Statement of Answer, although not within 10 days of filing the Statement of Answer.

On September 26, 2025, the Customers registered for the DR Portal, providing them with access to all documents filed in the case.

On September 29, 2025, the Customers submitted an unsworn written statement opposing Claimant's expungement request, which was read and considered by the Panel.

The Panel conducted a recorded hearing by videoconference on November 12, 2025, so the parties could present oral argument and evidence on Claimant's request for expungement. Claimant appeared by videoconference at the expungement hearing. Respondent appeared at the expungement hearing and, as stated in the Statement of Answer, supported the request for expungement.

The Customers did not appear at the expungement hearing.

No authorized representative of a state securities regulator appeared at the expungement hearing.

The Panel noted Claimant's representation that a prior arbitration panel or court has not previously ruled on expungement of the same occurrence in the CRD.

The Panel noted that the dispute related to Occurrence Number 2359763 was not settled. Respondent denied the Customers' complaint in a letter dated October 16, 2024, and the Customers took no action to pursue their complaint. Therefore, there was no settlement documentation to review.

AWARD

After considering the pleadings, the testimony and evidence presented at the expungement hearing, and any post-hearing submissions, the Panel has decided in full and final resolution of the issues submitted for determination as follows:

1. The Panel awards the expungement of all references to Occurrence Number 2359763 from registration records maintained by the CRD for Claimant Ronald Lane Martin Jr. (CRD Number 2200217) with the understanding that, pursuant to Rule 2080, Claimant Ronald Lane Martin Jr. must obtain confirmation from a court of competent jurisdiction before the CRD will execute the expungement directive.

Unless specifically waived in writing by FINRA, parties seeking judicial confirmation of an arbitration award containing customer dispute expungement relief must name FINRA as an additional party and serve FINRA with all appropriate documents.

Pursuant to Rule 13805 of the Code, the Panel has made the following affirmative findings of fact:

The claim, allegation, or information is factually impossible or clearly erroneous; and

The claim, allegation, or information is false.

The Panel has made the above findings based on the following reasons:

This claim for expungement arose from a customer complaint filed against Claimant and Respondent on August 27, 2024, by the Customers. The Customers' complaint [Claimant's Exhibit C], while not the essence of clarity can be read as alleging: (a) breach of fiduciary duty; (b) excessive trading to generate commissions; (c) unsuitability due to illiquidity; (d) assessment of an unauthorized 1% management fee; and (f) charges for undisclosed withdrawal penalties. All of the foregoing is asserted to have occurred during the period 2016-2019. [Exhibit B to Statement of Claim].

Addressing the allegations one by one—

- (a) Breach of fiduciary duty. We find Claimant was not a fiduciary. This was explicitly acknowledged by the Customers. [Testimony of Claimant; Claimant's Exhibit E].
- (b) Excessive trading to generate commissions. There was only one (1) transaction during 2016-2019, the relevant period specified in the Customers' complaint. This does not constitute excessive trading. [Testimony of Claimant; Claimant's Exhibit D].
- (c) Unsuitability due to illiquidity. The illiquidity was fully disclosed and acknowledged by the Customers. Given their financial statement and the disclosures in the prospectus of the respective securities, we do not find these securities to have been unsuitable at the time of purchase and there is no evidence whatsoever of misrepresentation of the investment risk or illiquidity. [Testimony of Claimant; Claimant's Exhibits J, N, O, P, and Q].
- (d) 1% management fee on the value of the account. No such fee was ever charged, assessed or discussed for the account(s) maintained at Respondent by the Customers. [Testimony of Claimant; Claimant's Exhibit D].

- (e) Undisclosed withdrawal penalties. There were no withdrawal fee(s) associated with pertinent securities, and none were ever charged. [Testimony of Claimant; Claimant's Exhibit D].

The Panel concludes that the allegations, and each of them, contained within the Customers' complaint are either clearly erroneous and/or false pursuant to Rule 13805(c)(9)(A)(i)(a) and (c).

We therefore find in favor of the Claimant. Occurrence Number 2359763 arising from the Customers' complaint against Claimant should be expunged. We further find that the expungement would have no material adverse effect on investor protection, the integrity of the CRD system or regulatory requirements.

2. Any and all claims for relief not specifically addressed herein are denied.

FEES

Pursuant to the Code, the following fees are assessed:

Filing Fees

FINRA Dispute Resolution Services assessed a filing fee* for each claim:

Initial Claim Filing Fee	= \$ 2,000.00
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**The filing fee is made up of a non-refundable and a refundable portion.*

Member Fees

Member fees are assessed to each member firm that is a party in these proceedings or to the member firm(s) that employed the associated person(s) at the time of the event(s) giving rise to the dispute. Accordingly, as a party, Respondent is assessed the following:

Member Surcharge	= \$ 2,600.00
Member Process Fee	= \$ 5,005.00

Hearing Session Fees and Assessments

The Panel has assessed hearing session fees for each session conducted. A session is any meeting between the parties and the Arbitrator(s), including a pre-hearing conference with the Arbitrator(s), which lasts four (4) hours or less. Fees associated with these proceedings are:

One (1) pre-hearing session with the Panel @ \$1,725.00/session	= \$ 1,725.00
Pre-Hearing Conference: August 29, 2025 1 session	
One (1) hearing session on expungement request @ \$1,725.00/session	= \$ 1,725.00
Hearing: November 12, 2025 1 session	
Total Hearing Session Fees	= \$ 3,450.00

The Panel has assessed the total hearing session fees to Claimant.

All balances are payable to FINRA Dispute Resolution Services and are due upon receipt.

ARBITRATION PANEL

Daniel B. MacLeod	-	Public Arbitrator, Presiding Chairperson
Dora M. Lassinger	-	Public Arbitrator
Ira A. Auerbach	-	Public Arbitrator

I, the undersigned Arbitrator, do hereby affirm that I am the individual described herein and who executed this instrument, which is my award.

Concurring Arbitrators' Signatures

Daniel B. MacLeod

Daniel B. MacLeod
Public Arbitrator, Presiding Chairperson

11/23/2025

Signature Date

Dora M. Lassinger

Dora M. Lassinger
Public Arbitrator

11/20/2025

Signature Date

Ira A. Auerbach

Ira A. Auerbach
Public Arbitrator

11/20/2025

Signature Date

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November 25, 2025

Date of Service (For FINRA Dispute Resolution Services use only)